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**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

\_\_\_\_\_  
**ANTON SPRUELL AND JOCELYN SPRUELL, also  
known as JOCELYN ALEJANDRO,  
Plaintiff**

**-against-**

**THE CITY OF NEW YORK, DET. DIANA  
SPRANGENBERG OF NBBX, SHIELD #5428, SGT.  
EDWARD VARGAS OF NBBX, SHIELD #04573, DET.  
VARGAS' PARTNER ON 2/13/09 S/H/A JOHN/JANE  
DOE I AND THE TACTICAL TEAM SGT. ON 2/13/09  
S/H/A JOHN/JANE DOE II,**

**Defendants**  
\_\_\_\_\_

**Index No.**

**Purchased \_\_\_\_\_  
Plaintiff designates  
Bronx County as the place of trial**

**The basis of the venue is where the  
tort arose and  
where Plaintiff resides**

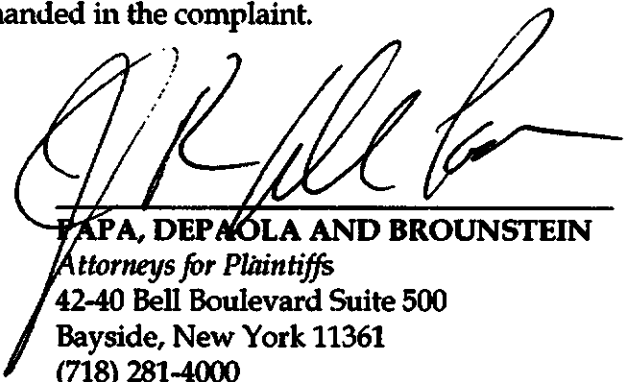
**SUMMONS**

**Plaintiff resides at  
ANTON SPRUELL  
JOCELYN SPRUELL  
1311 Balcom Avenue, PH  
Bronx, New York 10461**

**TO THE ABOVE NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with the summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

**Dated: Bayside, New York  
April 26, 2010**

  
**PAPA, DEPAOLA AND BROUNSTEIN  
Attorneys for Plaintiffs  
42-40 Bell Boulevard Suite 500  
Bayside, New York 11361  
(718) 281-4000**

**Defendants' Addresses:  
CORPORATION COUNSEL OF THE  
CITY OF NEW YORK  
100 Church Street  
New York, New York 10007**

**DET. DIANA SPRANGENBERG OF NBBX,  
SHIELD #5428,  
One Police Plaza, Room 1100  
New York, New York 10038**

10 APR 26 PM 2:01  
COUNTY CLERK  
BRONX COUNTY

RECEIVED

**SGT. EDWARD VARGAS OF NBBX,  
TAX REG#905216**

One Police Plaza, Room 1100  
New York, New York 10038

**DET. VARGAS' PARTNER ON 2/13/09  
S/H/A JOHN/JANE DOE I**

One Police Plaza, Room 1100  
New York, New York 10038

**THE TACTICAL TEAM SGT. ON 2/13/09  
S/H/A JOHN/JANE DOE II,**

One Police Plaza, Room 1100  
New York, New York 10038

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

-----X  
**ANTON SPRUELL AND JOCELYN SPRUELL, also  
known as JOCELYN ALEJANDRO,**  
Plaintiff

**Index No.**  
Purchased \_\_\_\_\_

-against-

**VERIFIED COMPLAINT**

**THE CITY OF NEW YORK, DET. DIANA  
SPRANGENBERG OF NBBX, SHIELD #5428, SGT.  
EDWARD VARGAS OF NBBX, SHIELD #04573, DET.  
VARGAS' PARTNER ON 2/13/09 S/H/A JOHN/JANE  
DOE I AND THE TACTICAL TEAM SGT. ON 2/13/09  
S/H/A JOHN/JANE DOE II,**

Defendants  
-----X

**ANTON SPRUELL AND JOCELYN SPRUELL, also known as JOCELYN  
ALEJANDRO, by their attorneys, PAPA, DEPAOLA AND BROUNSTEIN, respectfully  
alleges as follows:**

**AS AND FOR A FIRST CAUSE OF ACTION**

1. At all times mentioned, Plaintiff **ANTON SPRUELL** was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 8<sup>th</sup> day of April, 2009 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process

personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **DET. DIANA SPRANGENBERG OF NBBX, SHIELD #5428, SGT. EDWARD VARGAS OF NBBX, SHIELD #04573, DET. VARGAS' PARTNER ON 2/13/09 S/H/A JOHN/JANE DOE I AND THE TACTICAL TEAM SGT. ON 2/13/09 S/H/A JOHN/JANE DOE II**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about February 13, 2009 at approximately 3:10 p.m. in the vicinity of 1311 and 1312 Balcom Avenue, Bronx, New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **ANTON SPRUELL**, in an excessive

manner about his person, causing him physical pain and mental suffering.

At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

**AS AND FOR A SECOND CAUSE OF ACTION**

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about February 13, 2009 at approximately 3:10 p.m. in the vicinity of 1311 and 1312 Balcom Avenue, Bronx, New York the Defendants, jointly and severally did place Plaintiff **ANTON SPRUELL** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

**AS AND FOR A THIRD CAUSE OF ACTION**

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about February 13, 2009 at approximately 3:10 p.m. in the vicinity of 1311 and 1312 Balcom Avenue, Bronx, New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him

and his liberty and then took him into custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No. 2009BX009803. The Plaintiff was thereafter held in custody over the course of approximately 3 days before he made bail. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

**AS AND FOR A FOURTH CAUSE OF ACTION**

12. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "11" as it set forth at length herein.
13. Defendants **DET. DIANA SPRANGENBERG OF NBBX, SHIELD #5428, SGT. EDWARD VARGAS OF NBBX, SHIELD #04573, DET. VARGAS' PARTNER ON 2/13/09 S/H/A JOHN/JANE DOE I AND THE TACTICAL TEAM SGT. ON 2/13/09 S/H/A JOHN/JANE DOE II**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
14. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
15. Plaintiff **ANTON SPRUELL** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

16. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
17. On or about February 13, 2009 the Defendants, armed police, while effectuating the seizure of the Plaintiff **ANTON SPRUELL**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so. Further, the plaintiff was subjected to an illegal search and seizure even though the defendants did not possess a reasonable and/or probable cause to believe that the plaintiff had secreted contraband in or on his person.
18. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:
  - a. Freedom from assault to his person;
  - b. Freedom from battery to his person;
  - c. Freedom from illegal search and seizure;
  - d. Freedom from false arrest;
  - e. Freedom from the use of excessive force during the arrest process.
19. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used the fourth and fourteenth amendments of the United States Constitution.
20. The direct and proximate result of the Defendants' acts are that the Plaintiff

has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

**AS AND FOR A FIFTH CAUSE OF ACTION**

21. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "20" with full force and effect as though set forth at length herein.
22. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
23. The City of New York was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
24. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:



1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
  2. Excessive force cannot be used against an individual who does not physically resist arrest.
  3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
  4. An individual such as the plaintiff herein cannot be subjected to a strip search with cavity inspection unless the police possess legal cause and/or have a reasonable suspicion and/or probable cause that the plaintiff has secreted contraband in or on his person.
25. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**AS AND FOR A SIXTH CAUSE OF ACTION**

26. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "25" as it set forth at length herein.
27. Defendant City of New York was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these

officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

**AS AND FOR A SEVENTH CAUSE OF ACTION**

28. At all times mentioned, Plaintiff **JOCELYN SPRUELL**, also known as **JOCELYN ALEJANDRO**, was a resident of Bronx County, City and State of New York.
29. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
30. On or about the 8<sup>th</sup> day of April, 2009 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
31. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
32. The Plaintiff has complied with the request of the municipal Defendant's for

an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

33. Upon information and belief, at all times mentioned, Defendants **DET. DIANA SPRANGENBERG OF NBBX, SHIELD #5428, SGT. EDWARD VARGAS OF NBBX, SHIELD #04573, DET. VARGAS' PARTNER ON 2/13/09 S/H/A JOHN/JANE DOE I AND THE TACTICAL TEAM SGT. ON 2/13/09 S/H/A JOHN/JANE DOE II**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
34. On or about February 13, 2009 at approximately 3:10 p.m. in the vicinity of 1311 and 1312 Balcom Avenue, Bronx, New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **JOCELYN SPRUELL, also known as JOCELYN ALEJANDRO** in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

**AS AND FOR A EIGHTH CAUSE OF ACTION**

35. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "34" with full force and effect as though set forth at length herein.
36. On or about February 13, 2009 at approximately 3:10 p.m. in the vicinity of

1311 and 1312 Balcom Avenue, Bronx, New York the Defendants, jointly and severally did place Plaintiff **JOCELYN SPRUELL, also known as JOCELYN ALEJANDRO** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

**AS AND FOR A NINTH CAUSE OF ACTION**

37. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "36" with full force and effect as though set forth at length herein.
38. On or about February 13, 2009 at approximately 3:10 p.m. in the vicinity of 1311 and 1312 Balcom Avenue, Bronx, New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty and then took her into custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No. 2009BX009802. The Plaintiff was thereafter held in custody over the course of approximately 3 days before she was released on her own recognizance after arraignment. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

**AS AND FOR A TENTH CAUSE OF ACTION**

39. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "38" as it set forth at length herein.
40. Defendants **DET. DIANA SPRANGENBERG OF NBBX, SHIELD #5428, SGT. EDWARD VARGAS OF NBBX, SHIELD #04573, DET. VARGAS' PARTNER ON 2/13/09 S/H/A JOHN/JANE DOE I AND THE TACTICAL TEAM SGT. ON 2/13/09 S/H/A JOHN/JANE DOE II**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
41. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
42. Plaintiff **JOCELYN SPRUELL, also known as JOCELYN ALEJANDRO** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
43. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
44. On or about February 13, 2009 the Defendants, armed police, while effectuating the seizure of the Plaintiff **JOCELYN SPRUELL, also known as JOCELYN ALEJANDRO**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during

the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so. Further, the plaintiff was subjected to an illegal search and seizure even though she did not possess a reasonable and/or probable cause to believe that the plaintiff had secreted contraband in or on her person.

45. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:
- a. Freedom from assault to her person;
  - b. Freedom from battery to her person;
  - c. Freedom from illegal search and seizure;
  - d. Freedom from false arrest;
  - e. Freedom from the use of excessive force during the arrest process.
46. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used the fourth and fourteenth amendments of the United States Constitution.
47. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

**AS AND FOR A ELEVENTH CAUSE OF ACTION**

48. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "47" with full force and effect as though set forth at length herein.

49. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
50. The City of New York was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
51. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
  1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
  2. Excessive force cannot be used against an individual who does not physically resist arrest.
  3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

4. An individual such as the plaintiff herein cannot be subjected to a strip search with cavity inspection unless the police possess legal cause and/or have a reasonable suspicion and/or probable cause that the plaintiff has secreted contraband in or on her person.
52. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to her person and denied her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**AS AND FOR A TWELFTH CAUSE OF ACTION**

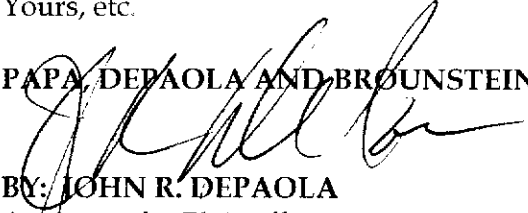
53. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "52" as it set forth at length herein.
54. Defendant City of New York was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.



**WHEREFORE**, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York  
April 26, 2010

Yours, etc.

  
**PAPA, DEPAOLA AND BROUNSTEIN**

**BY: JOHN R. DEPAOLA**  
Attorneys for Plaintiff  
42-40 Bell Boulevard Suite 500  
Bayside, New York 11361  
(718) 281-4000

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

-----X  
**ANTON SPRUELL AND JOCELYN SPRUELL, also  
known as JOCELYN ALEJANDRO,**

Index No.  
Purchased:

Plaintiff

**VERIFICATION**

-against-

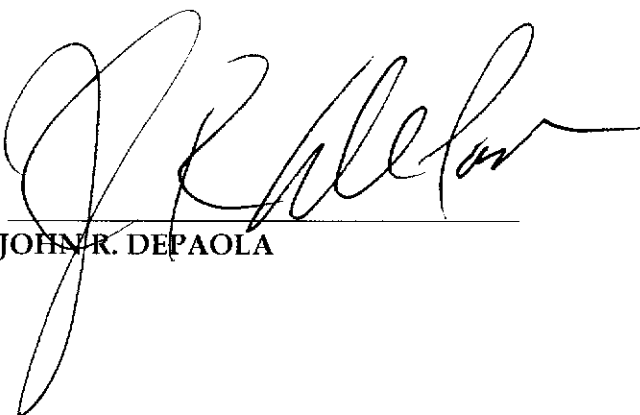
**THE CITY OF NEW YORK, DET. DIANA  
SPRANGENBERG OF NBBX, SHIELD #5428, SGT.  
EDWARD VARGAS OF NBBX, SHIELD #04573, DET.  
VARGAS' PARTNER ON 2/13/09 S/H/A JOHN/JANE  
DOE I AND THE TACTICAL TEAM SGT. ON 2/13/09  
S/H/A JOHN/JANE DOE II,**

Defendants

-----X  
I, **JOHN R. DEPAOLA**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **PAPA, DEPAOLA AND BROUNSTEIN**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
April 26, 2010



JOHN R. DEPAOLA

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

---

ANTON SPRUELL AND JOCELYN SPRUELL, also known as JOCELYN ALEJANDRO,

Plaintiff

-against-

THE CITY OF NEW YORK, DET. DIANA SPRANGENBERG OF NBBX, SHIELD #5428, SGT.  
EDWARD VARGAS OF NBBX, SHIELD #04573, DET. VARGAS' PARTNER ON 2/13/09 S/H/A  
JOHN/JANE DOE I AND THE TACTICAL TEAM SGT. ON 2/13/09 S/H/A JOHN/JANE DOE  
II,

Defendants

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**SUMMONS AND VERIFIED COMPLAINT**

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PAPA DEPAOLA AND BROUNSTEIN  
BY: JOHN R. DEPAOLA  
Attorney for Plaintiffs  
42-40 Bell Boulevard  
Bayside, NY 11361  
Tel. (718) 281-4000

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To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

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Service of a copy of the within is hereby admitted.

Dated

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Attorney(s) for